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 **Dougan v. Nunes**
United States District Court, D. New Jersey. August 19, 2009 | 645 F.Supp.2d 319 (Approx. 8 pages)

Veronda and Timothy W. DOUGAN, Plaintiffs,

v.

Renae and Joseph NUNES, Defendants.

Civil Action No. 08-268 (JEI/KMW).

Aug. 19, 2009.

Synopsis

Background: Plaintiffs, which owned rottweiler used to mate with **dog** that bit female plaintiff's face, brought action against owner of **dog** pursuant to New Jersey's strict liability statute for damages due to physical injuries, emotional harms and disruption of her daily activities, and damages sustained by her husband due to loss of his wife's society, services and consortium. Owner moved for summary judgment, and plaintiffs cross-moved for summary judgment on liability.

Holdings: The District Court, [Irenas](#), Senior District Judge, held that:

- 1 owners were liable, under New Jersey's strict liability statute, for **dog bite** sustained by female plaintiff;
- 2 plaintiffs did not assume risk of potential **dog bite**; and
- 3 plaintiffs did not know **dog** had propensity to **bite** and did not intend to incite **dog**, as was required for other **dog** owner to assert comparative negligence affirmative defense.

Plaintiffs' motion granted.

West Headnotes (5)

[Change View](#)

SELECTED TOPICS

Animals

Dogs

[Home Purchaser Real Estate Ag](#)

Injuries to Persons

[Proximate Cause of Injuries](#)

Measure of Contribution

[Inequitable Pro Rata Share of Eac and Severally Liable Defendant](#)

Secondary Sources

[APPENDIX III-JUDICIAL OPIN](#) 
FDA Enforcement Man. Appendix III

...No. 74-215 Supreme Court of the I States 421 U.S. 658; 95 S. Ct. 1903 Argued March 18-19, 1975 June 9, 1 Chief Justice Burger delivered the of the Court. We granted certiorar...

[APPENDIX II: FAIR LABOR ST](#) 
ACT REGULATIONS TITLE 29
FEDERAL REGULATIONS

Fair Labor Stds. Hdbk. for States, Lc Govs. and Schools Appendix II

...The U.S. Department of Labor pub rule changes in October 2013 that w the companionship and live-in dome services exemptions (but not the bat exemption) effective on Jan. 1, ...

[Pit Bull Dog Attack Litigation](#)
33 Am. Jur. Trials 195 (Originally put 1986)

...Almost everyone is familiar with a case, but the pit bull **dog bite** case is class by itself. The pit bull **dog** is a fi **dog** with genetic characteristics of a This article analy...

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Briefs

[NORFOLK & WESTERN RAIL](#) 
COMPANY, Petitioner, v. Freeman A' al., Respondents.

2002 WL 32102927

NORFOLK & WESTERN RAILWAY COMPANY, Petitioner, v. Freeman A' al., Respondents.

Supreme Court of the United States June 17, 2002

...FN* Counsel of Record FN* The c of Respondents Johnson (Civil Actio C8888) and Shirley (Civil Action No. 8970) are substantially similar to the complaints of Respondents Ayers, B

Joint Appendix

2013 WL 4714436

Township of Mount Holly, et al., Petit Mt. Holly Gardens Citizens in Action, al., Respondents.

Supreme Court of the United States Aug. 26, 2013

...FN* Counsel of Record I, ANDREW BEVERIDGE, Ph.D. of full age, here as follows: 1) I, Andrew A. Beveridge Professor of Sociology at Queens C and the Graduate Center, City Unive

1 **Animals**

For a defendant to be liable for **dog bite** under New Jersey's strict liability statute: (1) the defendant must be the owner of the **dog**; (2) the **dog** must have **bitten** the injured party; and (3) the **bite** must occur while such person is on or in a public place, or lawfully on or in a private place, including the property of the owner of the **dog**. [N.J.S.A. 4:19-16](#).

[1 Case that cites this headnote](#)



- [28](#) Animals
- [28k66](#) Injuries to Persons
- [28k66.5](#) **Dogs**
- [28k66.5\(1\)](#) Duties and liabilities in general

2 **Animals**

Owners of **dog** were liable, under New Jersey's strict liability statute, for damage caused to face of plaintiff, who owned rottweiler which mated with **dog**, due to **bite**, where **bite** occurred while other owner was lawfully in her own house. [N.J.S.A. 4:19-16](#).



- [28](#) Animals
- [28k66](#) Injuries to Persons
- [28k66.5](#) **Dogs**
- [28k66.5\(1\)](#) Duties and liabilities in general

[Brief for the United States](#) 
2013 WL 5425148
Doyle Randall PAROLINE, Petitioner
UNITED STATES OF AMERICA, et al.
Supreme Court of the United States
Sep. 27, 2013
...The amended opinion of the en ba
of appeals (J.A. 425-499) is reported
F.3d 749. The original opinion of the
court of appeals (J.A. 349-424) is re
697 F.3d 306. The pane...

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Trial Court Documents

[Medical Laboratory Manage](#) 
[v. American Broadcasting Cos., Inc.](#)
1998 WL 35174273
MEDICAL LABORATORY MANAGE
CONSULTANTS d/b/a Consultants M
Lab, et al., Plaintiffs, v. AMERICAN
BROADCASTING COMPANIES, INC
Defendants.
United States District Court, D. Arizo
Dec. 23, 1998
...FN1. A cytotechnologist is a medic
laboratory technologist who examine
under a pathologist's supervision in c
diagnose cancer or other diseases. I
John and Carolyn Devaraj are Medic

[Rev. Martin Fry v. Middletown Tp.](#)
2003 WL 26075058
REV. MARTIN FRY, v. MIDDLETOW
TOWNSHIP, et al.
United States District Court, E.D.
Pennsylvania.
Mar. 12, 2003
...DATE: March 12, 2003 Now before
Defendants' Motion for Summary Jud
For the reasons that follow, this moti
granted in part and denied in part. In
case, Reverend Martin Fry and...

[Doe v. United States of America](#) 
2015 WL 10571522
Jane DOE, Petitioner, v. UNITED ST
OF AMERICA, Respondent.
United States District Court, N.D. Ca
May 29, 2015
...JOHN GLEESON, United States D
Judge: Jane Doe filed an application
October 30, 2014, asking me to exp
thirteen-year old fraud conviction be
the undue hardship it has created f...

[See More Trial Court Documents](#)

3 Animals

Plaintiffs, who were owners of rottweiler, did not assume risk of potentially being **bitten** by **dog** which was left at their house during mating process, so as to preclude other **dog** owners' liability, under New Jersey's strict liability statute, for **dog bite** sustained by female plaintiff; plaintiffs did not offer service to other **dog** owners which bespoke any skill or aptitude in care, handling or breeding of rottweilers, plaintiff who was **bitten** did not handle **dogs** as part of her occupation, nor did she regularly handle **dogs** at time of incident other than one she owned as pet, plaintiffs were not breeding **dogs** according to previously developed expertise and were not engaged in business of **dog** breeding, but rather relied on advice from breeder and other **dog** owners who had such prior experience. [N.J.S.A. 4:19–16](#).



[28](#) Animals
[28k66](#) Injuries to Persons
[28k66.5](#) **Dogs**
[28k66.5\(6\)](#) Assumption of risk

4 Animals

Comparative negligence may be a defense to **dog bite** cases brought under New Jersey's strict liability statute; however, unlike typical claims of comparative negligence, in the strict liability setting, a defendant must prove that the plaintiff knew the **dog** had a propensity to **bite** either because of the **dog's** known viciousness or because of the plaintiff's deliberate acts intended to incite the animal. [N.J.S.A. 4:19–16](#).



[28](#) Animals
[28k66](#) Injuries to Persons
[28k66.5](#) **Dogs**
[28k66.5\(4\)](#) Contributory and comparative negligence

[1 Case that cites this headnote](#)

5 Animals

Plaintiffs, which owned rottweiler used to mate with **dog** that bit female plaintiff's face, did not know **dog** had propensity to **bite**, and did not have any intent to incite **dog** either while petting him or when plaintiff went to kiss her plaintiff husband, as was required for owners of **biting dog** to assert affirmative defense of comparative negligence to plaintiffs' claims under New Jersey's strict liability statute; although plaintiffs were warned by breeder not to allow **dog** to sleep over while they were breeding, they were given no reason, and warning was ignored solely as result of other **dog** owners' representations. [N.J.S.A. 4:19–16](#).

[1 Case that cites this headnote](#)

[28](#)

Animals

[28k66](#)

Injuries to Persons

[28k66.5](#)**Dogs**[28k66.5\(4\)](#)

Contributory and comparative negligence

Attorneys and Law Firms

***320** Law Offices of Eric Lavdas, P.C. by [Eric Lavdas](#), Esq., Cherry Hill, NJ, for Plaintiffs.

Hoagland, Longo, Moran, Dunst, & Doukas, LLP by [John C. Simons](#), Esq., New Brunswick, NJ, for Defendants.

OPINION

[IRENAS](#), Senior District Judge:

Presently before the Court are Defendants' Motion for Summary Judgment (Docket No. 12) and Plaintiffs' Cross-Motion for Summary Judgment on Liability (Docket No. 14). The Court has reviewed submissions of the parties, and for the reasons set forth below, Plaintiffs' Motion for Summary Judgment on Liability will be granted, and Defendants' Motion for Summary Judgment will be denied. ¹

I.

This case arises from a **dog** owned by Defendants Renae and Joseph Nunes (collectively, "Defendants") **biting** Plaintiff ***321** Veronda Dougan. Plaintiffs Veronda and Timothy Dougan (collectively, "Plaintiffs") own a female Rottweiler named Dixie whom they sought to breed. (Def. R. 56.1 Stat. at ¶ 1.) They contacted a professional Rottweiler breeder, Antoinette Coviello, to locate a male candidate for breeding. (Id. at ¶ 2.) Coviello referred Plaintiffs to Defendants, who owned a male **dog** named Einstein that they had already used for breeding three times. (Id. at ¶ 3.) Coviello, who did not charge a service fee for creating the connection, told Plaintiffs that Defendants "seemed to be nice people," and she believed it would not be a problem to breed the two **dogs**. (V. Dougan Depo. at 14:19–21, 21:7–9.)

Plaintiffs and Defendants discussed the arrangements for breeding their **dogs** through emails and phone conversations. (Id. at 18:12–15.) Plaintiffs informed Defendants that they

were unfamiliar with the breeding procedure, and Defendants assured Plaintiffs that they had experience and would guide Plaintiffs through the process. (Id. at 22:8–16.) The parties eventually agreed to have Defendants bring Einstein to Plaintiffs' house to breed with Dixie later in the week. (Id.) The parties never reached a formal agreement concerning payment to Defendants, but they verbally agreed that if Dixie took, Defendants would receive their pick of the litter. (T. Dougan Depo. 26:9–15.)

On February 4, 2006,² Defendants brought Einstein to Plaintiffs' house, and the **dogs** mated once during the day. (Def. R. 56.1 Stat. ¶ 6.) Plaintiffs planned to have guests at their house later in the afternoon, so Defendants agreed to leave. However, Defendants told Plaintiffs that the **dogs** usually needed to mate at least twice for the insemination process to take effect, and they insisted that Einstein remain at Plaintiffs' house until the next morning. (V. Dougan Depo. at 29:24–31:24.) Plaintiffs eventually permitted Defendants to leave Einstein overnight because Defendants convinced them that Einstein had no visible aggression issues, and Defendants insisted that they had followed the same procedure on three previous occasions. (Id. at 31:25–32:15.)

The **dogs** mated a second time after Plaintiffs' guests had left. (T. Dougan Depo. 32:2–4.) That evening, at around 6:30 p.m., Plaintiff Timothy Dougan sat at the foot of his bed while Einstein rested his head on Timothy's lap. Plaintiff Veronda Dougan went to kiss her husband on the bed, and Einstein bit Veronda's face. (Id. at 37:10–20.) Timothy drove Veronda to the hospital, and doctors administered two shots of antibiotics to Veronda before giving her 34 stitches. (V. Dougan Depo. at 50:1–9.)

Plaintiffs submitted a two-count Complaint on January 14, 2008. Count I asserts that Defendants are liable to Plaintiff Veronda Dougan under New Jersey's strict liability statute, [N.J. Stat. Ann. § 4:19–16](#), for damages due to physical injuries, emotional harms, and disruption of her daily activities. (Compl. at ¶ 6.) Count II asserts that Defendants are also liable to Plaintiff Timothy Dougan under [N.J. Stat. Ann. § 4:19–16](#) for damages because he has been deprived of his wife's society, services, and consortium. (Id. at ¶ 9.)³

*322 II.

"[S]ummary judgment is proper 'if the pleadings, depositions, answers to interrogatories, and admissions on file, together with the affidavits, if any, show that there is no genuine issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.' " [Celotex Corp. v. Catrett](#), 477 U.S. 317, 322, 106 S.Ct. 2548, 91 L.Ed.2d 265 (1986) (quoting [Fed.R.Civ.P. 56\(c\)](#)). In deciding a motion for summary judgment, the court must construe the facts and inferences in a light most favorable to the non-moving party. [Pollock v. Am. Tel. & Tel. Long Lines](#), 794 F.2d 860, 864 (3d Cir.1986).

" 'With respect to an issue on which the non-moving party bears the burden of proof, the burden on the moving party may be discharged by 'showing'—that is, pointing out to the district court—that there is an absence of evidence to support the nonmoving party's case.' " [Conoshenti v. Public Serv. Elec. & Gas](#), 364 F.3d 135, 145–46 (3d Cir.2004) (quoting [Celotex](#)). The role of the Court is not "to weigh the evidence and determine the truth of the matter, but to determine whether there is a genuine issue for trial." [Anderson v. Liberty Lobby, Inc.](#), 477 U.S. 242, 249, 106 S.Ct. 2505, 91 L.Ed.2d 202 (1986).

III.

Plaintiffs argue that New Jersey's strict liability statute applies to this case. See [N.J. Stat. Ann. § 4:19–16](#). The statute states:

The owner of any **dog** which shall **bite** a person while such person is on or in a public place, or lawfully on or in a private place, including property of the owner of the **dog**, shall be liable for such damages as may be suffered by the person **bitten**, regardless of the former viciousness of such **dog** or the owner's knowledge of such viciousness.

[N.J. Stat. Ann. § 4:19–16](#).

1 For a defendant to be liable under this statute, (1) “the defendant must be the owner of the **dog**,” (2) “the **dog** must have **bitten** the injured party,” and (3) “the **bite** must occur ‘while such person is on or in a public place, or lawfully on or in a private place, including the property of the owner of the **dog**.’ ” *DeRobertis v. Randazzo*, 94 N.J. 144, 151, 462 A.2d 1260 (1983) (quoting N.J. Stat. Ann. § 4:19–16).

2 All parties agree that (1) Defendants are the owners of Einstein, (2) Einstein bit Plaintiff Veronda Dougan, and (3) the **bite** occurred while Plaintiff was lawfully in her own house. Therefore, Defendants are liable so long as the statute applies. However, Defendants assert that Plaintiffs were independent contractors who assumed the risk of potentially being **bitten** by Einstein, and, as such, cannot be held strictly liable.

3 Defendants rely on *Reynolds v. Lancaster County Prison*, 325 N.J.Super. 298, 739 A.2d 413 (App.Div.1999). In *Reynolds*, a **dog** handler worked as an independent contractor for a company that owned **dogs** which it rented to other businesses to secure their premises at night. He was **bitten** by a **dog** which escaped from the kennel after being placed there by the handler, and he sued the company under N.J. Stat. Ann. § 4:19–16. The court held that “in ordinary circumstances, when a **dog** is delivered for care to an independent contractor the owner is entitled to rely on the doctrine of primary assumption of the risk.” *Reynolds*, 325 N.J.Super. at 323, 739 A.2d 413. In reaching this holding, the court relied on a California case,⁴ which held that “a veterinarian or a veterinary assistant who accepts *323 employment for the medical treatment of a **dog**, aware of the risk that any **dog**, regardless of its previous nature, might **bite** while being treated, has assumed this risk as part of his or her occupation.” *Nelson v. Hall*, 165 Cal.App.3d 709, 211 Cal.Rptr. 668, 673 (1985).

The California Supreme Court has since extended the application of the primary assumption of risk doctrine to include a kennel worker **bitten** by a pit bull left by the owner with a kennel “in the business of kenneling” for boarding. *Priebe v. Nelson*, 39 Cal.4th 1112, 47 Cal.Rptr.3d 553, 140 P.3d 848, 859 (2006). The court reasoned that a **dog** owner should not be strictly liable for damages to kennel workers “where the **dog** owner has completely relinquished the care, custody, and control of his or her **dog** to a ... professional trained to care for and safely handle **dogs**....” *Id.*

In these cases the victims were experienced in the care and handling of **dogs** and held themselves out to the public as skilled in these activities. To the contrary, Plaintiffs neither had any special skills in this area nor publically marketed themselves as having such expertise. The parties’ relationship was a simple agreement to breed their **dogs**. No formal contract existed, and Plaintiffs expressly notified Defendants that they were not experts at handling **dogs**. (See V. Dougan Depo. at 22:14–16.) The parties agree that Plaintiffs had no prior experience breeding **dogs**, while Defendants had previously used Einstein for breeding. (*Id.* at 17:19–21.)

Defendants argue that Plaintiffs took Einstein for the night for the sole purpose of producing a litter for their monetary benefit. However, nothing in N.J. Stat. Ann. § 4:19–16 suggests that a plaintiff is barred from recovery because the informal agreement to breed Dixie and Einstein might result in an economic benefit to either or both parties. The parties agreed to bring their respective pets in close enough proximity to let nature take its course. Plaintiffs’ however, offered no service to defendants which bespoke any skill or aptitude in the care, handling or breeding of Rottweilers.

Defendants argue that because Plaintiff Veronda Dougan had owned between 15 and 20 **dogs** in her lifetime, she should have been well aware of the potential risks of handling **dogs**. (*Id.* at 12:1–4.) However, she did not handle **dogs** as part of her occupation, nor did she regularly handle **dogs** at the time of the incident other than the one she owned as a pet. Compare, *Reynolds*, *Priebe*, and *Nelson*.

Plaintiffs were certainly not breeding Dixie and Einstein according to some expertise they had previously developed, nor were they engaged in the business of **dog** breeding. Rather, they relied on advice from both Coviello and Defendants who had such prior experience. (V. Dougan Depo. at 14–16, 22:1–5, 31–33.) Even assuming, *arguendo*, that the New

Jersey Supreme Court would adopt the exception articulated in *Reynolds*, *Nelson*, and *Priebe*, the essential element of those decisions, that the plaintiffs had special skills in the care and handling of **dogs** which were commercially offered to the public, is not present in this matter.

IV.

4 Defendants maintain that even the Court grants summary judgment in favor of Plaintiffs on the assumption of the risk issue, Defendants are still entitled to assert the affirmative defense of comparative negligence.⁵ Comparative negligence may ***324** indeed be a defense to cases brought under N.J. Stat. Ann. § 4:19–16. *Pingaro v. Rossi*, 322 N.J. Super. 494, 731 A.2d 523 (App. Div. 1999), *Budai v. Teague*, 212 N.J. Super. 522, 515 A.2d 822 (Law Div. 1986). However, unlike typical claims of comparative negligence, in the strict liability setting, a defendant must prove that the “plaintiff knew the **dog** had a propensity to **bite** either because of the **dog's** known viciousness or because of the plaintiff's deliberate acts intended to incite the animal.” *Budai*, 212 N.J. Super. at 525, 515 A.2d 822.

5 In this case, viewing the evidence in the light most favorable to Defendants, there is nothing in the record that would indicate that Plaintiffs either knew that Einstein had a propensity to **bite**, or that they had any intent to incite Einstein either while petting him, or when Veronda Dougan went to kiss her husband. At best, Defendants could argue that Plaintiffs were warned by Coviello not to let Einstein spend the night, and were thereby voluntarily exposed themselves to a known risk. However, this argument fails for several reasons. First, nowhere in the record does it indicate that Plaintiffs were told why they should not let Einstein spend the night. (V. Dougan Depo. at 15:12–20; T. Dougan Depo. at 16:13–25.) Furthermore, despite Coviello's warning and Plaintiffs' initial reluctance, they ultimately permitted Einstein to stay the night because Defendants' urged them to do so based on their prior experiences and because Einstein had not exhibited any signs of aggression in Plaintiffs' presence. (V. Dougan Depo. at 31:7–32:19.)

Even accepting that Plaintiffs were warned by the breeder not to permit a sleep-over, they were given no reason for this, and the warning was ignored solely as a result of Defendants' representations. At most, this could constitute simple negligence, which is not sufficient to survive summary judgment. See *Pingaro*, 322 N.J. Super. at 498, 731 A.2d 523 (holding that “there is no basis in law to submit the issue of plaintiff's negligence to the jury” when there was no evidence that plaintiff incited the **dog** or “voluntarily or unreasonably exposed herself to a known risk.”), *Budai*, 212 N.J. Super. at 526, 515 A.2d 822 (holding that “mere negligence” from touching the **dog's** ear when it appeared irritated was insufficient to overcome summary judgment); *Mayer v. Mascarehas*, No. 08–3323, 2009 WL 2390223, at *2 (E.D. Pa. Aug. 4, 2009) (“Even accepting Defendant's contention that Plaintiff grabbed the **dog's** face when she sought to pet it, this at most constitutes negligence, which is insufficient to preclude summary judgment.”) (applying N.J. Stat. Ann. § 4:19–16).

V.

For the reasons stated above, Plaintiffs' Motion for Summary Judgment on Liability will be granted, and Defendants' Motion ***325** for Summary Judgment will be denied. The Court will issue an appropriate Order.

ORDER DENYING DEFENDANTS' MOTION FOR SUMMARY JUDGMENT AND GRANTING PLAINTIFFS' CROSS-MOTION FOR SUMMARY JUDGMENT ON LIABILITY (Docket Nos. 12 & 14)

Presently before the Court are Defendants' Motion for Summary Judgment (Docket No. 12) and Plaintiffs' Cross-Motion for Summary Judgment on Liability (Docket No. 14). The Court having considered the submissions of the parties, and for the reasons set forth in an opinion issued by this Court on even date herewith, and for good cause appearing;

IT IS on this 19th day of August, 2009,

ORDERED THAT:

1. Defendants' Motion for Summary Judgment (Docket No. 12) is **DENIED**.
2. Plaintiffs' Cross-Motion for Summary Judgment on Liability (Docket No. 14) is **GRANTED**.
3. The parties are to schedule a conference with Magistrate Judge Williams within 30 days of this Order to address any remaining issues regarding damages.

All Citations

645 F.Supp.2d 319

Footnotes

- 1 This Court has subject matter jurisdiction pursuant to [28 U.S.C. § 1332](#).
- 2 The Complaint and both parties' briefs indicate February 4, 2006, was the date of the incident. However, multiple questions during Plaintiffs' deposition by Defendants' counsel refer to February 6, 2004. After examining all the submitted materials, it is clear that February 4, 2006, is the actual date of the incident, and references to February 6, 2004, are incorrect.
- 3 Counts I and II both specifically allege that the **bite** was "a result of the negligence, carelessness and liability pursuant to [N.J.S.A. 4:19-16](#) of the defendants...." (Compl. at ¶¶ 6, 9.) However, Plaintiffs make no mention of negligence in their papers in support of their Motion for Summary Judgment. As such, the Court concludes that Plaintiffs are only pursuing liability under [N.J. Stat. Ann. § 4:19-16](#).
- 4 California's strict liability statute is substantially similar to New Jersey's. See [Cal. Civ.Code § 3342](#).
- 5 It should be noted that while Defendants do assert comparative negligence as an affirmative defense in their Answer, at no point in their moving brief to they address the issue. Nor do Plaintiffs address the issue in either of their briefs. In fact, the only mention of comparative negligence in the briefing of the instant Cross-Motions is the following typo-ridden sentence, made in passing, from Defendant's Brief in Opposition to Plaintiffs' Motion: "In the event, [sic] the Court grant's [sic] Plaintiffs' motion, Defendants' [sic] maintain the common law claim for comparative negligence." (Def. Op. Br. at 5.) While neither party actually makes an attempt to brief the issue of whether New Jersey's Comparative Negligence Act, [N.J. Stat. Ann. § 2A:15-5.1-5.3](#), applies to the strict liability **dog bite** statute, or whether Defendants have satisfied their burden of proving comparative negligence, the Court will nonetheless address the issue because, based on the proposed order provided along with their Motion, Plaintiffs are seeking summary judgment on the entire issue of liability, and not just whether the defense of assumption of the risk is available in this case.

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